

FACEBOOK'S FACES

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The Facebook Oversight Board's decision about the suspension of Donald Trump's account is different from the Board's other cases because it interests states. The 'Trump Ban' case affects the Board's reputation and Facebook's relationships with states and publics. We will not understand the case's impact if we do not understand these relationships.

Scholarship about social media platforms discusses their relationship with states and users. The Essay is the first to expand this theorization to account for differences among states, the varying influence of different publics and the internal complexity of companies. Theorizing Facebook's relationships this way includes less influential states and publics that are otherwise obscured. It reveals that Facebook engages with states and publics through multiple, parallel regulatory conversations, further complicated by the fact that Facebook itself is not a monolith. This Essay argues that Facebook has many faces – different teams working towards different goals, and engaging with different ministries, institutions, scholars and civil society organizations. Content moderation exists within this eco-system.

This Essay's account of Facebook's faces and relationships shows that less influential publics can influence the company through strategic alliances with strong publics or powerful states. It also suggests that Facebook's carelessness with a seemingly weak state or a group, may affect its relationship with a strong public or state that cares about the outcome.

To be seen as independent and legitimate, the Oversight Board needs to show its willingness to curtail Facebook's flexibility in its engagement with political leaders where there is a real risk of harm. This Essay hopes to show Facebook that the short-term retaliation from some states may be balanced out by the long-term reputational gains with powerful publics and powerful states who may appreciate its willingness to set profit-making goals aside to follow the Oversight Board's recommendations.

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I. INTRODUCTION

The new Facebook Oversight Board has taken on a case that can make or break it as an institution: the case of the suspension of Donald J. Trump's account.¹ If heard as it should be, this case potentially creates a collision between the company's interests in appeasing political leaders and Oversight Board's reputation as an institution that will curtail the company's excesses. To establish its credibility, the Oversight Board needs to show the world that it is not constrained by the company's business interests in rapid expansion.² The 'Trump Ban' case, as I will be calling it in the rest of this paper, offers a rare opportunity for the Oversight Board to underscore its independence and willingness to disregard the economic and political pressures on the

¹ See Nick Clegg, *Referring Former President Trump's Suspension From Facebook to the Oversight Board*, FACEBOOK NEWSROOM (Jan 21, 2021), <https://about.fb.com/news/2021/01/referring-trump-suspension-to-oversight-board/>; *Oversight Board accepts case on former US President Trump's indefinite suspension from Facebook and Instagram*, FACEBOOK OVERSIGHT BOARD NEWSROOM (JAN 2021) <https://www.oversightboard.com/news/236821561313092-oversight-board-accepts-case-on-former-us-president-trump-s-indefinite-suspension-from-facebook-and-instagram/>, Evelyn Douek, *Facebook Has Referred Trump's Suspension to Its Oversight Board. Now What?*, LAWFARE (Jan 21, 2021), <https://www.lawfareblog.com/facebook-has-referred-trumps-suspension-its-oversight-board-now-what>.

² Facebook's motto in the early days 'move fast and break things' has changed but still continues to define how the company is seen. See SIVA VAIDHYANATHAN, *ANTISOCIAL MEDIA: HOW FACEBOOK DISCONNECTS US AND UNDERMINES DEMOCRACY* (2018), STEVEN LEVY, *FACEBOOK: THE INSIDER STORY* (2020).

company.

I discuss Facebook's self-regulatory system³ for speech on its platform in the context of the Trump ban case in the first part of this Essay. Towards this I lay out relevant background about Facebook's decision-making that will demonstrate why this case is significant for the Oversight Board's future. As a part of this I offer a new perspective on Facebook's self-regulatory system for content regulation, arguing that Facebook does not engage with all states in the same way, and it certainly does not engage with all publics in the same way. Consider for example, the difference between Myanmar and Germany, or Palestinian teenagers and the American Press.

It can be easy to miss the complex relationships between the company and external actors if they are described in ways that flatten them into uniformity. I also argue that Facebook does not always engage with external actors as a monolith: there are conversations and tensions within the company, with different teams pushing it towards opposing outcomes depending on their mandate. In other words, Facebook engages differently with different actors, and different teams and individuals within the company have different priorities. Facebook has many faces.

In the second part of the paper, I discuss Facebook's new Oversight Board which has been constructed as an independent entity with a limited sphere of influence, intended to legitimize the company's self-regulatory system.⁴ The only way that the Oversight Board can manage this, is to increase the sociological legitimacy⁵ of self-regulatory system, since it cannot possible offer legal or moral legitimacy for reasons that I discuss below in Part III B. The question then is the extent to which the Oversight Board is capable of

³ See Robert Gorwa, *The Platform Governance Triangle: Conceptualising the Informal Regulation of Online Content*, 8 *Internet Pol. Rev.* 14 (2019); Chinmayi Arun, *The Facebook Oversight Board: An Experiment in Self-Regulation*, JUST SECURITY (May 6, 2020), <https://www.justsecurity.org/70021/the-facebook-oversight-board-an-experiment-in-self-regulation/>; David Kaye, *The Republic of Facebook*, JUST SECURITY (May 6, 2020), <https://www.justsecurity.org/70035/the-republic-of-facebook/>; Siva Vaidhyanathan, *Facebook and the Folly of Self-Regulation*, WIRED IDEAS (September 5, 2020), <https://www.wired.com/story/facebook-and-the-folly-of-self-regulation/>; See also TARLETON GILLESPIE, *CUSTODIANS OF THE INTERNET: PLATFORMS, CONTENT MODERATION, AND THE HIDDEN DECISIONS THAT SHAPE SOCIAL MEDIA* (2018), Kate Klonick, *The New Governors: The People, Rules, and Processes Governing Online Speech*, 131 *HARV. L. REV.* 1598 (2018); Robyn Caplan, *DATA & SOC'Y, CONTENT OR CONTEXT MODERATION? ARTISANAL, COMMUNITY-RELIANT, AND INDUSTRIAL APPROACHES* (2018).

⁴ See Evelyn Douek, *Facebook's "Oversight Board:" Move Fast with Stable Infrastructure and Humility*, 21 *N.C. J.L. & TECH.* 1 (2019), [Hereinafter Douek, *Move Fast*] 46; See also Michael Karanickolas, *Squaring the Circle Between Freedom of Expression and Platform Law*, 20 *PITT. J. TECH. L. & POL'Y* 175, 180-84 (2020), 193.

⁵ Richard H. Fallon, *Legitimacy and the Constitution*, *HARV. L. REV.* 1787, 1795.

increasing the system's sociological legitimacy. There are two perspectives from which this can be viewed. The first is how does Facebook assess the increase in its sociological legitimacy, and is it equally concerned about all its publics in this context? I suggest that Facebook may actually be affected more by how some influential publics, which may include groups such as the American media, view its legitimacy. Other publics such as Kashmiri teenagers or refugees (except to the extent that the powerful publics are able to connect with them and reflect their concerns) are likely to have less influence.⁶ The other perspective that follows from this, is of the efforts that Facebook makes towards procedural justice⁷, in trying to gain sociological legitimacy. If we recognize that the company tends to look to particular publics for procedural legitimacy, it will become clear that the company's strategies to gain this legitimacy as well as weaker publics' strategies to influence Facebook will be more effective if they take this reality into account.

In the third part of the paper, I discuss how the Facebook Oversight Board might affect the company's relationship with states. The Oversight Board might easily have gone through its first year adjudicating the 'hard cases'⁸, questions of how to handle difficult decisions about controversial speech. Paradoxically, the 'hard cases' may have been easier for Facebook and the Oversight Board than the incendiary Trump Ban question that they now consider. The Trump Ban question not only affects Americans and American political leaders⁹, but potentially affects populations and political leaders around the world.¹⁰ Given the outcry about an individual - Mark Zuckerberg

⁶ For a discussion of formation of different publics and their relationship with the public sphere, see Nancy Fraser, *Rethinking the Public Sphere: A Contribution to the Critique of Actually Existing Democracy*, in *THE PHANTOM PUBLIC SPHERE* (Bruce Robbins ed., 1993).

⁷ See Tom R. Tyler, *Procedural Justice, Legitimacy, and the Effective Rule of Law*, 30 *CRIME & JUST.* 283 (2003), 284.

⁸ See Nick Clegg, *Charting a Course for an Oversight Board for Content Decisions*, FACEBOOK NEWSROOM (Jan 28, 2021) <https://about.fb.com/news/2019/01/oversight-board/>; See also Jenny Domino, 'Why Facebook's Oversight Board is Not Diverse Enough', JUST SECURITY (May 21, 2020) <https://www.justsecurity.org/70301/why-facebooks-oversight-board-is-not-diverse-enough/>; and Emily Bell, 'Facebook's Oversight Board plays it safe', COLUM. JOURNALISM REV. (Dec. 5, 2020).

⁹ See Vicki Jackson & Martha Minow, *Facebook Suspended Trump. The Oversight Board Shouldn't Let Him Back*, LAWFARE (March 8, 2021, 11:02 AM) <https://www.lawfareblog.com/facebook-suspended-trump-oversight-board-shouldnt-let-him-back> for a thorough analysis.

¹⁰ See Dipayan Ghosh and Justin Hendrix, *Facebook's Oversight Board Takes on the Curious Case of Donald J. Trump*. (Jan 29, 2021), VERFBLOG, <https://verfassungsblog.de/fob-trump/>. See also Evelyn Douek, *Trump Is Banned. Who Is Next?*, ATLANTIC (Jan 9, 2021).

- holding the power to make a decision about Donald Trump's speech¹¹, it is clear why Facebook chose to refer the question to the Oversight Board. This is a situation in which the Board can play a legitimizing role, potentially lending Mark's decision credibility through an independent panel of international experts' approval of his decision.

Since the specific question before the Oversight Board focuses on the *indefinite* suspension of Trump's account¹², it will address an unresolved question for Facebook, taking pressure off the company. However, this case signals to states and publics how Oversight Board thinks cases concerning political leaders' speech should be treated. This puts the Oversight Board in a delicate position. Its first choice lies in how it frames the problem. If it embraces the opportunity to discuss how Facebook should treat incitement to violence by political leaders around the world, it will lean into its role as an independent expert body adjudicating difficult questions. However the Oversight Board can side-step the question by framing it instead (as Facebook did) as an exceptional situation defined by the transition of power.¹³ It might also focus only on the permanent de-platforming of political leaders instead of addressing the spectrum of questions that arise from this case. These conservative choices will have reputational costs for the Board. The question that the Board will need to answer is a broader one about Facebook's treatment of political leaders who incite violence.¹⁴

In answering the question meaningfully, the Oversight Board has many options. For example, it might recommend ending Facebook's practice of creating exceptions for political leaders or limit circumstances in which exceptions are made. It might create rules to evaluate the risk of harm from incitement, and a process for suspending the accounts of political leaders who incite violence. It might even come up with an innovative answer involving

¹¹ See Emily Bazelon, *Why Is Big Tech Policing Speech? Because the Government Isn't*, N.Y. TIMES MAG. (Jan 26, 2021), <https://www.nytimes.com/2021/01/26/magazine/free-speech-tech.html>; Alex Hern & Kari Paul, *Donald Trump suspended from Facebook indefinitely, says Mark Zuckerberg*, THE GUARDIAN (Jan 7, 2021), <https://www.theguardian.com/us-news/2021/jan/07/donald-trump-twitter-ban-comes-to-end-amid-calls-for-tougher-action>. It is worth noting that the outcry is not about Mark Zuckerberg as much as about the idea of an individual's power. Jack Dorsey was also criticised for suspending Trump's account. See Ambar Warrick & Sruthi Shankar, *Twitter tumbles as Trump ban puts social media in spotlight*, REUTERS (Jan 11, 2021), <https://www.reuters.com/article/us-twitter-stocks-trump/twitter-tumbles-as-trump-ban-puts-social-media-in-spotlight-idUSKBN29G0XG>.

¹² Id

¹³ Clegg, *supra* note 1; FACEBOOK OVERSIGHT BOARD NEWSROOM *supra* note 1.

¹⁴ Jackson & Minow, *supra* note 9.

technology.¹⁵ Then there is the question of whether Facebook will accept the Oversight Board's policy recommendation.¹⁶ If Facebook fails to follow the Oversight Board's advice in case with such high stakes, it will damage the Board's credibility. However if Facebook does start reacting consistently and firmly to political leaders who incite violence on its platform, this is likely to affect the company's relationship with states and may invite punitive regulation or other action from them.

In other words, Facebook's painstaking efforts to prepare faces to meet the faces it meets have created a situation in which it is at odds with itself. The question that the Trump Ban has raised is whether the Oversight Board is capable of being firm with the company, even if there is a high cost in the form of irate political leaders wielding state power against the company. If the Oversight Board is meant to be Facebook's champion for human rights, this is its first real test of strength. If it steps up to the challenge, it will then put the onus on Facebook to make the difficult decisions necessary to commit to its efforts to increase the legitimacy of the content moderation system.

II. BACKGROUND

Facebook mostly separates its engagement with states from its engagement with its users in the contest of decisions about speech on its platform. It does this by using two different systems of rules. States are usually interested in the company's implementation of laws. Facebook uses an opaque system to implement the 'local laws',¹⁷ and decisions made in this system are not subject to appeals and review, or the Oversight Board.¹⁸ In contrast, the global rules concerning users – Facebook's own 'community standards' described as privately ordered 'platform law'¹⁹ – are subject to an

¹⁵ In its decision in the French Health Misinformation case, the Oversight Board suggested the use of labelling, downranking and the introduction of friction to reduce amplification of the content. See *Case Decision 2020-006-FB-FBR*, FACEBOOK OVERSIGHT BOARD (JAN 28, 2021), <https://oversightboard.com/decision/FB-XWJQBU9A/>.

¹⁶ See *Oversight Board Charter*, FACEBOOK, https://about.fb.com/wpcontent/uploads/2019/09/oversight_board_charter.pdf [hereinafter 'Oversight Board Charter'], Article 4.

¹⁷ This system only leads to the blocking of content in the state where it is illegal, and the content is otherwise available and visible on Facebook elsewhere. See *Content Restrictions Based on Local Law*, FACEBOOK TRANSPARENCY REPORT, <https://transparency.facebook.com/content-restrictions> [hereinafter FACEBOOK TRANSPARENCY REPORT].

¹⁸ See Oversight Board Charter, Article 1, Section 4.

¹⁹ See *Report of the Special Rapporteur on the promotion and protection of the right to freedom of opinion and expression*, U.N. Doc. A/HRC/38/35 (2018), <https://documents-dds-ny.un.org/doc/UNDOC/GEN/G18/096/72/PDF/G1809672.pdf> [hereinafter 'UN

increasingly elaborate system of review, including the Oversight Board.

This is why the Trump Ban case is significant. A formal decision that affects political leaders, especially heads of states, is of interest to states. It breaches the barriers protecting Facebook's engagement with states, raising questions about how the company can balance its interests, its staff's interests, and the interests of its publics, while making decisions about heads of states. After discussing the two separate rule systems in some detail below in Part II.A, I go on to argue that states', publics' and even Facebook's interests are not as uniform or easily identified as one might think. We need to move from thinking of Facebook as Janus-faced, one face for users and one face for states, to thinking of it as having many faces.

States engage with social media platforms in more ways than are easily visible. There are ongoing regulatory conversations in which state actors and companies negotiate, agree and renegotiate.²⁰ In the context of content moderation, Jack Balkin's work shows us that there are two ways in which states influence speech: through laws and by informally pressuring platforms like Facebook to regulate through their own community standards.²¹ They also have other carrots and sticks at their disposal, in the form of data protection regulation, competition regulation or regulatory approvals for the company's new products. In Part II.B, I argue out that the state-platform relationship is not confined to local laws or to political leaders' speech. This is further complicated by the fact that some states can influence Facebook more easily than other states.

Facebook's rules or community standards change in response to more than just the fear of regulation or pressure from states. The company has also been responsive in the past to pressure from its publics, especially from particular non-state actors such as select NGOs or a section of the media. Facebook's relationship with its publics, like its relationship with states, is complicated. In Part II. C, I offer an account that highlights Facebook's stronger and weaker publics and ways in which they engage with the company, with states and with each other.

I tie all these influences on Facebook's creation and enforcement of rules together in part D, where I explain why it is valuable to think of Facebook

Special Rapporteur report]; Molly K. Land, *The Problem of Platform Law: Pluralistic Legal Ordering on Social Media* in THE OXFORD HANDBOOK OF GLOBAL LEGAL PLURALISM (2020); See also Kate Klonick, *The New Governors*, *supra* note 3.

²⁰ Julia Black, *Regulatory Conversations*, 29 J.L. & SOC'Y 163 (2002) [hereinafter Black, *Regulatory Conversations*].

²¹ Jack M. Balkin, *Free Speech Is a Triangle*, 118 COLUM. L. REV. 2011 (2018) [hereinafter Balkin, *Triangle*].

in terms of its many faces and internal voices, and the variations in its dealings with different states and different publics.

A. Local Laws and Community Standards

Content moderation on Facebook follows two systems of rules – states' local laws and Facebook's community standards – and each system follows a different process. In its enforcement of local laws, Facebook implements the laws of the countries in which it operates within that country. As a result, Facebook content seen as blasphemous is not visible in Pakistan where it is illegal²² but is visible in other parts of the world. In contrast, the community standards are Facebook's rules for the entire platform, and they apply globally.²³ This is why efforts to raise funds for a loan scam or pyramid scheme are removed from Facebook.

Facebook's system for applying local laws is not subject to the same reviews and opportunities for appeal as the privately ordered content moderation system for its community standards. Facebook explains that it follows the following process while making a decision about content flagged for violating local laws²⁴:

If content does not violate our policies, in line with our commitments as a member of the Global Network Initiative, we conduct a careful legal review to confirm whether the report is valid, as well as human rights due diligence. In cases where we believe that reports are not legally valid, are overly broad, or are inconsistent with international human rights standards, we may request clarification or take no action.

Facebook's own rules for speech in the form of its 'values' and 'community standards' are enforced on its platform globally, and are subject to its appeals mechanism and now to the Oversight Board. Donald Trump's account was suspended for violating the community standards.²⁵ It was initially suspended for short periods, and then indefinitely.²⁶ This decision was made through the company's internal process, which in this particular case meant that it was made by Mark Zuckerberg since it involved a head of

²² See FACEBOOK TRANSPARENCY REPORT, *supra* note 17.

²³ There is a rich body of scholarship about the community standards, including for example GILLESPIE, *supra* note 3; Klonick, *New Governors*, *supra* note 3; DAVID KAYE, *SPEECH POLICE: THE GLOBAL STRUGGLE TO GOVERN THE INTERNET* (2019).

²⁴ See FACEBOOK TRANSPARENCY REPORT, *supra* note 17.

²⁵ See Guy Rosen and Monika Bickert, *Our Response to the Violence in Washington*, FACEBOOK NEWSROOM (Jan 7, 2021), <https://about.fb.com/news/2021/01/responding-to-the-violence-in-washington-dc/>; Clegg, *supra* note 1.

²⁶ *Id.*

state.²⁷

Specifically, the company has invited the Oversight Board's recommendations on two of the many questions raised by its decisions. The first question is whether the *indefinite* suspension of Trump's account was consistent with the platform's values; and the second question seeks the Oversight Board's recommendations about suspending the accounts of political leaders.

The newsworthiness exception is significant here.²⁸ It was adopted in 2016²⁹ and is a policy to allow content that otherwise violates Facebook's community standards when the company finds that the public interest of the content outweighs the harm.³⁰ On July 30th, 2019, Facebook's Product Policy Team discussed Facebook's Newsworthiness policy in one of its regular meetings to discuss changes to the community standards.³¹ One of the goals of the meeting was to 'provide more transparency, consistency and accountability' in how the newsworthiness policy applied to politicians.³² The decision made at the meeting was to presume that politicians' speech is newsworthy unless there is risk of harm, which specifically includes the potential to incite violence.³³

The minutes of this meeting make for an interesting contrast with news reports of Facebook's actual decisions about incitement to violence by politicians. It appears that in practice, the policy is not always applied such that incitement to violence by public figures is removed. Although the company has put out details about *how* its policies are developed, and what process is followed to flag and review content, we still know little about the different priorities that are balanced when the company makes decisions about hate speech by political leaders for example. It appears that rules, as applied, do not necessarily produce the results anticipated by those who framed them.

²⁷ Id; See also Kate Klonick, *Inside the Making of Facebook's Supreme Court*, NEW YORKER (Feb 12, 2021), <https://www.newyorker.com/tech/annals-of-technology/inside-the-making-of-facebooks-supreme-court> [hereinafter Klonick, NEW YORKER]; Hern & Paul, *supra* note 11.

²⁸ See Thomas E. Kadri & Kate Klonick, *Facebook v. Sullivan: Public Figures and Newsworthiness in Online Speech*, 93 S. CAL. L. REV. 37.

²⁹ *Product Policy Forum Minutes*, FACEBOOK NEWSROOM (Jul 30, 2019) https://about.fb.com/wp-content/uploads/2019/12/PPF-Final-Deck_07.30.2019.pdf. (Hereinafter *Product Policy Forum on Newsworthiness*)

³⁰ This determination was made by Facebook employees on a case-by-case basis. See Kadri & Klonick, *supra* note 28.

³¹ *Product Policy Forum on Newsworthiness*, *supra* note 29.

³² Id.

³³ Id.

The bifurcated system of rules described above looks simple at first glance – global community standards are between Facebook and its users; while local laws are about governments' relationship with their citizens that Facebook respects. Facebook follows local laws in the countries in which it operates, as does Twitter. However, I argue below that Facebook's complex relationships with states and different publics, and its own internal competing priorities result in the somewhat puzzling range of outcomes in how it implements laws and its own community standards.

B. Facebook and States

The interpretation and enforcement of local laws, and the framing and enforcement of community standards are two major sites of engagement between Facebook and states.³⁴ As Jack Balkin has pointed out, states' use of social media platforms to enforce local law leads to collateral censorship, and states also pressure intermediaries to use their private rules - like community standards – to carry out the state's agenda of regulating speech.³⁵ I expand this narrative by pointing out that social media platforms like Facebook do not necessarily engage with all states in the same way, and that their negotiations with states take place on multiple fronts.

It is important to remember that Facebook also engages with states in many ways that have little to do with content moderation. These include data protection, getting regulatory approval for new products, or other matters that affect the company such as taxation. It may be fair to assume that like most companies Facebook would prefer to retain access to its markets, and to ward off state regulation as far as possible.

Refusing to follow local laws threatens the Facebook's access to markets.³⁶ At worst, the platform can be blocked altogether and its staff threatened with arrest.³⁷ However since content moderation is only one among many ongoing negotiations between Facebook and state, there are other costs to refusing to comply. Facebook risks being regulated, and having its activities impeded or questioned if it fails to co-operate with the

³⁴ Balkin, *Triangle*, *supra* note 21.

³⁵ Id. See also Daphne Keller, *Who Do You Sue? State and Platform Hybrid Power over Online Speech* (Hoover Working Group on National Security, Technology, and Law, Aegis Series Paper No. 1902, 2019), available at <https://www.lawfareblog.com/who-do-you-sue-state-and-platform-hybrid-power-over-online-speech>; Molly K. Land, *Against Privatized Censorship: Proposals for Responsible Delegation*, 60 VA. J. INT'L L. 363 (2020).

³⁶ See for example, Declan Walsh, *Pakistan lifts Facebook ban but 'blasphemous' pages stay hidden*, THE GUARDIAN (May 31, 2010) <https://www.theguardian.com/world/2010/may/31/pakistan-lifts-facebook-ban>.

³⁷ See REBECCA MACKINNON, *CONSENT OF THE NETWORKED* (2012); Klonick, *The New Governors*, *supra* note 3.

government. In short, the interpretation of local laws, and the parallel system for content-moderation that it creates, is one of many sites for the platform-government negotiations that implicate other actors who may also have a stake in the outcomes of these negotiations.

Both censorship in compliance with local laws and through the social media platforms' privately ordered rules³⁸ are affected by the leverage that different states have with Facebook. This may depend on a range of factors, including Facebook's direct and indirect interests in the market, its reputational concerns, its past engagement with the government, and how far its staff appreciate and identify with the state's concerns³⁹. As a result, the company may be willing to shut down its services in some states and may be willing to change its global content policies at the behest of other states.

It often falls to the social media companies to interpret and implement local laws,⁴⁰ and Facebook's interpretive choices may not always align with the state or the judiciary's reading of laws⁴¹. The company might also contest existing and emerging law.⁴² This leads to a back and forth with the state until a shared interpretation is reached.⁴³ As discussed above in Part IIA of this paper, Facebook's decisions interpreting and implementing local laws are not open to appeal. These are largely opaque except for the information found in transparency reports, that offer examples of how the company handles requests or orders to remove content for violating local laws.⁴⁴ There is no independent audit or assessment of this system except to the extent that the Global Network Initiative performs assessments of Facebook's good faith-efforts to implement the GNI principles.⁴⁵

The global information companies, including Google and Facebook, also

³⁸ Id, Klonick, *New Governors*, *supra* note 3; GILLESPIE, *supra* note 3.

³⁹ These concerns may be related to a laudable goal like human rights. However some human rights concerns may be more legible to the company than others depending on the background and priorities of the staff evaluating the concerns.

⁴⁰ Balkin, *Triangle*, *supra* note 21; See also Black, *Regulatory Conversations*, *supra* note 20.

⁴¹ Balkin, *Triangle*, *supra* note 21 (at FN 36)

⁴² See for example Hannah Beech, *Facebook Plans Legal Action After Thailand Tells It to Mute Critics*, N.Y. TIMES (Aug 5, 2020) <https://www.nytimes.com/2020/08/25/world/asia/thailand-facebook-monarchy.html>.

⁴³ See also Black, *Regulatory Conversations*, *supra* note 20.

⁴⁴ FACEBOOK TRANSPARENCY REPORT, *supra* note 17.

⁴⁵ This is a confidential process by design which means that it is difficult for the public to understand the extent and manner of each company's compliance with the GNI principles. <https://globalnetworkinitiative.org/wp-content/uploads/2020/04/2018-2019-PAR.pdf>; In the interests of full disclosure, the author is an alternate member of the GNI Board. The Board members are invited to review all assessment reports of the GNI member companies.

engage closely with the process of framing of laws⁴⁶, and offer open resistance to some of these laws on occasion. From time to time, the negotiations lead to either states or companies acting in ways that make it into the news. Recently, Australia and Facebook engaged in negotiation over a proposed Australian law to make Facebook pay the Australian news media for its content, during which Facebook disabled all news pages.⁴⁷ Equally, states can persuade the company to 'self-regulate' through laws that place the burden on the company to remove certain kinds of content.⁴⁸ Informal pressure from states can nudge the company to create new community standards.

Some states or coalitions of states are more influential than others.⁴⁹ For example, the European Commission was able to persuade Facebook, Microsoft, Twitter and YouTube to follow a 'voluntary' Code of Conduct which required them to implement new community guidelines for hate speech and expedite review of hate speech notifications, so that it takes place within 24 hours as far as possible⁵⁰ Ben Wagner has argued that the United States, the United Kingdom and Germany have been the most influential in the shaping of global content regulation.⁵¹ There is clearly a variation in co-operation of social media platforms with different states. If Facebook complied with all demands made by all states, it might not have been banned in China and Iran. Mark Zuckerberg obeyed summons by the European

⁴⁶ Julie Cohen, *Law for the Platform Economy*, 51 U.C. DAVIS L. REV. 133, 196 (2017).

⁴⁷ See Amanda Meade, *Facebook news ban fears grow as tech giant fails to sign deals with Australia's big media players*, THE GUARDIAN (Mar 12, 2011), <https://www.theguardian.com/media/2021/mar/11/facebook-news-ban-fears-grow-as-tech-giant-fails-to-sign-deals-with-australias-big-media-players>.

⁴⁸ See for example the German Netzwerkdurchsetzungsgesetz [NetzDG] [Network Enforcement Act], July 12, 2017; Linda Kinstler, *Germany's Attempt to Fix Facebook Is Backfiring*, THE ATLANTIC (May 18, 2018), <https://www.theatlantic.com/international/archive/2018/05/germany-facebook-afd/560435/>. Theorized in Balkin, *Triangle*, *supra* note 21.

⁴⁹ See DAVID KAYE, *SPEECH POLICE: THE GLOBAL STRUGGLE TO GOVERN THE INTERNET* (2019) 86.

⁵⁰ Hannah Bloch-Wehba, *Global Platform Governance and Private Power in the Shadow of the State*, 72 SMU L. REV. 27, 45 (2019);

⁵¹ BEN WAGNER, *GLOBAL FREE EXPRESSION - GOVERNING THE BOUNDARIES OF INTERNET CONTENT* (2016) 6.

Parliament⁵² but refuses calls from other Parliaments around the world⁵³, including Australia and India, and even refused to appear before an 'international grand committee' consisting of policy makers from Argentina, Brazil, Canada, Ireland, Latvia, Singapore and the United Kingdom.⁵⁴

However, even choices made based on how important a state is to Facebook are more complicated than they seem. The failure to prioritize concern for humanity in a small market like Myanmar may create reputational problems for the company in larger markets, which may also impact its profits. In other words, other states or non-state actors may take an interest in Facebook's activities in a particular state such that the choices before the company are not necessarily a straight-forward question of whether or not to appease a state (since the appeasement of one state may well have a detrimental effect on the appeasement of another state).

C. Facebook and its publics

If Facebook does not present itself in exactly the same way in its dealings with different states, and it certainly does not present itself the same way in its dealings with its publics. We tend to fall into the trap of thinking of Facebook's publics as if they all have equal power, reminiscent of the Habermasian ideal.⁵⁵ The content moderation system is evolving based on this idea, at best aiming for equal access by trying to accommodate language and regional groups. This is not however an accurate account of Facebook's publics. Borrowing from Nancy Fraser's critique of Habermas and her work

⁵² See Adi Robertson, Watch Mark Zuckerberg testify before the European Parliament, THE VERGE (May 22, 2018), <https://www.theverge.com/2018/5/22/17377974/mark-zuckerberg-european-parliament-meeting-gdpr-streaming-how-to-watch>; Adam Satariano and Milan Schreuer, *Facebook's Mark Zuckerberg Gets an Earful From the E.U.*, N.Y. TIMES (May 22, 2018), <https://ny.franktaylor.io/2018/05/22/technology/facebook-eu-parliament-mark-zuckerberg.html>

⁵³See for example Alex Hern and Dan Sabbagh, *Zuckerberg's refusal to testify before UK MPs 'absolutely astonishing'*, THE GUARDIAN (March 27, 2018), <https://www.theguardian.com/technology/2018/mar/27/facebook-mark-zuckerberg-declines-to-appear-before-uk-fake-news-inquiry-mps>.

⁵⁴Tony Romm, *Facebook CEO Mark Zuckerberg rejects request to testify in front of seven countries' lawmakers — but a lower-level official will appear*, WASHINGTON POST (Nov 23, 2018), <https://www.washingtonpost.com/technology/2018/11/23/facebook-ceo-mark-zuckerberg-rejects-request-testify-front-seven-countries-lawmakers-lower-level-official-will-appear/>.

⁵⁵ This is true not just of Facebook's publics but of all user of the internet. See for example, the discussion of the Networked Public Sphere in canonical writing such as YOCHAI BENKLER, *THE WEALTH OF NETWORKS* (2006) 181, 271-272.

on counterpublics⁵⁶, I argue here that we would be better served to think of in terms of a variety of publics, which would permit us to think in terms of strong and weak publics, publics in opposition to each other and groups that are less able to make themselves heard and understood through the communicative processes made available to them.⁵⁷

With this perspective, existing accounts of Facebook's decision-making yield interesting information. We see from Kate Klonick's thorough empirical work that the company's community standards were developed not just by Americans but what appear to be predominantly white Americans.⁵⁸ In the writing and review of Facebook's community standards, company's staff now consult a range of stakeholders. Informally as well as through deliberate engagement, the staff tend to be in touch with a range of influential people. The Oversight Board itself for example was triggered by a Harvard Professor who had a long-standing friendship with Facebook's Chief Operating Officer.⁵⁹

Facebook's efforts at stakeholder engagement and the voices that are privileged through it, depend on choices made by Facebook's staff. The minutes of the product policy forum indicate that a range of stakeholders across many countries are consulted.⁶⁰ However, they are chosen by staff and their inputs are filtered into the system by the staff. As Jenny Domino has argued, it is not just geographic diversity of stakeholders that is significant, but also whether the technical experts within the group of stakeholders are also diverse.⁶¹

It is evident that the company's staff are often in a position to translate or transmit public opinions to Facebook⁶², which makes them a very influential group. There will be variations of influence among them based on their roles and influence within the company. However, sometimes they can also make themselves heard outside their roles. In 2020, for instance, there was a virtual walkout by staff who felt that the company should act to restrict Donald

⁵⁶ Nancy Fraser, *supra* note 6, 57-61.

⁵⁷ See *id.*; see also Black, *Regulatory Conversations*, *supra* note 20.

⁵⁸ Klonick, *New Governors*, *supra* note 3.

⁵⁹ Klonick, *NEW YORKER*, *supra* note 27.

⁶⁰ See *Product Policy Forum Minutes*, FACEBOOK NEWSROOM, <https://about.fb.com/news/2018/11/content-standards-forum-minutes/>.

⁶¹ Jenny Domino, *The Facebook Oversight Board: International Law and Expert Rule in Private Global Speech Adjudication*, *Heidelberg Journal of International Law* (2021 forthcoming)"

⁶² There are multiple accounts of this influence in Klonick, *New Governors*, *supra* note 3, 1654-1655.

Trump's use of the platform.⁶³ The American political debate filtered into conversations within Facebook through the staff. It is easy to see how American employees who understand, follow and care about the situation in their country might advocate for goals that they share with American civil society. This triggers the question of whether staff in other countries are able to perform a similar function for their societies. It is unclear whether there are enough people in roles of sufficient visibility and influence to manage this. Despite the company's outreach, trying to include the voices of other groups, there are filtered through the staff in charge of the outreach and can be affected by their networks and sympathies.

Sometimes, marginalized publics will ally with a stronger public such as the American press to make their voices heard.⁶⁴ This is another way to get the company's attention, another strong public that has influence. This leveraging of a stronger public is how Facebook's role in the Rohingya genocide came to light.⁶⁵ The people of Myanmar were unable to get the company to take their concerns seriously. However once the role of Facebook in enabling incitement to violence made it to the New York Times and the United Nations Fact-finding Mission publicly chastised the company for its role⁶⁶, the Burmese people had the company's attention.

The ability to leverage strong publics is a useful strategy for weak publics in their engagement with the company. Given that it appears to be mostly white Americans who led the initial framing of the platform's community

⁶³ Sheera Frenkel et al, *Facebook Employees Stage Virtual Walkout to Protest Trump Posts*, N.Y. TIMES (Jun 1, 2020), <https://www.nytimes.com/2020/06/01/technology/facebook-employee-protest-trump.html>; Fanny Potkin et al, *Facebook staffers walk out saying Trump's posts should be reined in*, REUTERS (June 1, 2020), <https://www.reuters.com/article/us-facebook-trump-employee-criticism/facebook-staffers-walk-out-saying-trumps-posts-should-be-reined-in-idUSKBN2382D0>.

⁶⁴ See Billy Perrigo, *Facebook's Ties to India's Ruling Party Complicate Its Fight Against Hate Speech*, TIME (Aug 27, 2020), <https://time.com/5883993/india-facebook-hate-speech-bjp/>; Newley Purnell & Jeff Horwitz, *Facebook's Hate-Speech Rules Collide With Indian Politics*, THE WALL STREET JOURNAL (Aug 14, 2020), <https://www.wsj.com/articles/facebook-hate-speech-india-politics-muslim-hindu-modi-zuckerberg-11597423346>.

⁶⁵ See for example Megan Specia & Paul Mozur, *A War of Words Puts Facebook at the Center of Myanmar's Rohingya Crisis*, N.Y. TIMES (Oct 27, 2017), <https://www.nytimes.com/2017/10/27/world/asia/myanmar-government-facebook-rohingya.html>.

⁶⁶ Reuters, *Myanmar: UN blames Facebook for spreading hatred of Rohingya*, THE GUARDIAN (Mar 12, 2018), <https://www.theguardian.com/technology/2018/mar/13/myanmar-un-blames-facebook-for-spreading-hatred-of-rohingya>.

standards⁶⁷, it may be unsurprising that early versions of the rules failed to account for the power relations that are inherent to racist speech and failed to account for its region-specific manifestations such as caste. However reflection and better policies ensued after the rules were criticized by the American press.

Facebook's content moderation systems affect, involve and engage several non-state entities. Non-state actors are involved both with the implementation of local laws, and with Facebook's privately ordered community standards system. Facebook receives reports of violation of local laws from "governments and courts, as well from non-government entities such as members of the Facebook community and NGOs".⁶⁸ It is evident that state and non-state actors can in theory engage with the process of policy-making, interpretation and implementation. It is highly likely that a strong public like the New York Times has more influence than a weak state.

This has been confirmed by scholars who have shown that some actors have a greater influence on the standard setting process than others.⁶⁹ Ben Wagner writes in his book of how certain NGOs and networks develop an outsize influence on these policies. Over time Facebook restructured its process for writing the community standards to expand the groups of people who might influence the norms. While the process certainly draws from a larger and more varied pool of now, it is important to be aware that it remains the case that some actors have greater influence than others on this process.

Facebook has many publics, which do not all have the same power and leverage as far as the company is concerned. Awareness of this enables weaker publics to develop strategies of allying with stronger publics. Since these alliances are already visible, it may be in the company's interests to change its internal processes to progressively include weaker publics so that it is not taken by surprise when they ally with stronger publics like the global press.

D. Facebook's Faces

It is not just Facebook's engagement with states and publics that takes place on multiple fronts with varying goals. The company is also complex internally, like other large corporations. Evidence of this surfaces from time to time, with employees leaking information when they are unhappy with

⁶⁷ Klonick, *New Governors*, *supra* note 3.

⁶⁸ FACEBOOK TRANSPARENCY REPORT, *supra* note 17.

⁶⁹ See Kate Klonick's account of how those who created the community standards were mostly Americans immersed in American democratic culture in Klonick *New Governors*, *supra* note 3, 1618-1625.

Facebook's decisions and with protests.⁷⁰

Although a corporation can be assumed to have a broad profit-making motive, it has to choose from different paths towards that profit, and does have reputational concerns to take into account. While not all rent-seeking behavior is necessarily public, some of the company's choices – like its poor judgment in Myanmar – are very public and affect the company's relationship with other actors. As a result, Facebook – like other corporations – has teams and internal priorities that are directed at ensuring that tragedies like Myanmar do not occur. Apart from joining the GNI, the company also has a Director of Human Rights Policy⁷¹ who has a global team and commissions reports on the company's effect of human rights.

Facebook has to think of different states, a range of publics and of its own employees while making decisions. It has complex internal processes and teams with different goals to create the internal debates and friction necessary to balance competing priorities. Researchers who engaged in painstaking interview of particular teams – Kate Klonick, and Schulz and Kettemann – report that these teams are devoted to their goals of creating the best possible Oversight Board, or developing community standards that are best to address harmful speech without affecting voice excessively.⁷² It is safe to assume that other teams – like those focused on marketing or government relations – may have different priorities. Now and then the internal debates spill over into the public but they are largely opaque, contained within the corporation and taking place on terms that are not always clear.

These internal competing priorities mean that the company presents the

⁷⁰ Sheera Frenkel et al, *Facebook Employees Stage Virtual Walkout to Protest Trump Posts*, N.Y. TIMES (Jun 1, 2020), <https://www.nytimes.com/2020/06/01/technology/facebook-employee-protest-trump.html>; Fanny Potkin et al, *Facebook staffers walk out saying Trump's posts should be reined in*, REUTERS (June 1, 2020), <https://www.reuters.com/article/us-facebook-trump-employee-criticism/facebook-staffers-walk-out-saying-trumps-posts-should-be-reined-in-idUSKBN2382D0>; See Billy Perrigo, *Facebook's Ties to India's Ruling Party Complicate Its Fight Against Hate Speech*, TIME (Aug 27, 2020), <https://time.com/5883993/india-facebook-hate-speech-bjp/>; Newley Purnell & Jeff Horwitz, *Facebook's Hate-Speech Rules Collide With Indian Politics*, THE WALL STREET JOURNAL (Aug 14, 2020), <https://www.wsj.com/articles/facebook-hate-speech-india-politics-muslim-hindu-modi-zuckerberg-11597423346>.

⁷¹ Joshua Brustein, *Facebook's First Human Rights Chief Confronts Its Past Sins*, BLOOMBERG (Jan 20, 2020), <https://www.bloomberg.com/news/articles/2020-01-28/facebook-s-first-human-rights-chief-seeks-to-tame-digital-hate>.

⁷² See Klonick, *New Governors*, *supra* note 3; Matthias C. Kettemann & Wolfgang Schulz, *Setting Rules for 2.7 Billion*, Working Papers of the Hans-Bredow-Institut, Works in Progress No.1 available at <https://leibniz-hbi.de/en/publications/setting-rules-for-2-7-billion-a-first-look-into-facebook-s-norm-making-system>.

world with different faces. There are teams directed at cultivating government relationships, and engaging policy-makers. There are also teams with strong connections with NGOs and the human rights community. People external to the company are better able to affect the company's decisions if they are able to access the team with both influence and sympathetic priorities. It also means that we can safely assume that there is no agreement within Facebook about a question like the Trump Ban.⁷³ In addition to being a polarizing question outside the company, the de-platforming of political leaders is likely to be a polarizing question internally.⁷⁴

The Facebook Oversight Board is therefore taking on a question that can settle where the company stands in its relationship with states, with its publics. It is also potentially making a choice that will empower particular teams within Facebook while creating challenges for other teams. Apart from being a question of freedom of expression and incitement, it is also a question that can affect the relationship between Facebook's internal government relations voices and its human rights ones.

III. ENTER THE OVERSIGHT BOARD

Facebook has added the Oversight Board to the self-regulatory content moderation system consisting of detailed community standards, human and algorithmic enforcement of these standards, and the apparatus for appeals and reviews.⁷⁵ The Board has been deliberately constructed as an independent

⁷³ See for example, Kevin Roose et al *Don't Tilt Scales Against Trump, Facebook Executive Warns*, N.Y. TIMES (Jan 7, 2020), https://www.nytimes.com/2020/01/07/technology/facebook-trump-2020.html?fbclid=IwAR19VaPeIW_eNA1M6aJyRA0t7BqDKp2TnAXri7qnEvvmojKa1JfbCuOjNLI.

⁷⁴ See for example Fanny Potkin et al, *Facebook staffers walk out saying Trump's posts should be reined in*, REUTERS (June 1, 2020), <https://www.reuters.com/article/us-facebook-trump-employee-criticism/facebook-staffers-walk-out-saying-trumps-posts-should-be-reined-in-idUSKBN2382D0>; Kevin Roose et al *Don't Tilt Scales Against Trump, Facebook Executive Warns*, N.Y. TIMES (Jan 7, 2020), https://www.nytimes.com/2020/01/07/technology/facebook-trump-2020.html?fbclid=IwAR19VaPeIW_eNA1M6aJyRA0t7BqDKp2TnAXri7qnEvvmojKa1JfbCuOjNLI; Newley Purnell & Jeff Horwitz, *Facebook's Hate-Speech Rules Collide With Indian Politics*, THE WALL STREET JOURNAL (Aug 14, 2020), <https://www.wsj.com/articles/facebook-hate-speech-india-politics-muslim-hindu-modi-zuckerberg-11597423346>.

⁷⁵ See, Klonick, *New Governors*, *supra* note 3; Bloch-Wehba *supra* note 50; GILLESPIE, *supra* note 3; Douek, *Move Fast*, *supra* note 4; Klonick, *NEW YORKER*, *supra* note 27.

entity so that it can legitimise the company's self-regulatory system.⁷⁶ It will review some of Facebook's decisions to take down content⁷⁷, weighing in on difficult questions and help it think through the interpretation of its community standards.⁷⁸

Facebook has referred its decision to *indefinitely* suspend Donald Trump's access to the platform for review to the Oversight Board.⁷⁹ It has also stated that it will welcome 'observations or recommendations from the board around suspensions when the user is a political leader'.⁸⁰ This case is unique because it directly impacts Facebook's engagement with states, a dimension of Facebook's decision-making about content that is usually walled-off into the system to implement local laws⁸¹, or otherwise takes place within the leeway offered to political leaders through the newsworthiness exception. It is a case of interest to states, as well as one of enhanced interests to publics since the Oversight Board's views on incitement to violence by political leaders will impact them.

Since both questions before the Oversight Board are about suspension of accounts rather than about the removal of posts, it appears that the company has not invited the Board's comments on the circumstances in which it ought to remove political leaders' posts.⁸² However, in its call for public comments, the Oversight Board has chosen to broaden the scope of its deliberations⁸³ to the enforcement of all Facebook's policies against political leaders, given that they are often exempt as a result of Facebook's 'newsworthiness' exception.⁸⁴

The Board now has the opportunity to set an objective standard that limits appeasement of political leaders by the Facebook staff inclined towards stretching the exception⁸⁵ in ways that might endanger others. Since

⁷⁶ Mark Zuckerberg and Facebook staff confirm this as reported in Klonick, *NEW YORKER*, *supra* note 27; Douek, *Move Fast*, *supra* note 4 at 10,18.

⁷⁷ The Oversight Board has indicated its intention to revise its byelaws to bring cases in which Facebook decided not to take content down into its purview.

⁷⁸ Oversight Board Charter, Article 1 Section 4.

⁷⁹ Clegg, *supra* note 1.

⁸⁰ *Id*

⁸¹ See Part II A of this paper.

⁸² Clegg, *supra* note 1; FACEBOOK OVERSIGHT BOARD NEWSROOM *supra* note 1.

⁸³ FACEBOOK OVERSIGHT BOARD NEWSROOM *supra* note 1..

⁸⁴ See Part IIA of this paper; see also Kadri & Klonick, *supra* note 28.

⁸⁵ I do wish to note that since Facebook has many faces, we can safely assume that it is only some members of staff who are likely to wish to appease political leaders when it creates such a great risk. They may however occupy influential positions within the company and a recommended change in policy that limits the flexibility they are allowed in the context of the newsworthiness exception will limit what they are able offer political leaders.

Facebook does have many faces⁸⁶, it is likely that the Board's decision might actually play a co-ordination and adjudicatory or arbitral role, supporting those within the company whose mandate it is to implement systems that protect rights.

Here I discuss what this decision might mean for the Oversight Board's legitimacy. Towards this, I begin with discussing the Oversight Board's role in the broader context of Facebook's self-regulatory system in IIIA. Following this, I argue in part III B that the goal of Facebook's extensive investment in the Oversight Board is to gain legitimacy, specifically sociological legitimacy. In Part III C, I explain why the question of the Trump Ban and especially of the treatment of political leaders more broadly, will affect the Oversight Board's legitimacy.

A. The Oversight Board as Self-Regulation

The Oversight Board is a part of Facebook's content moderation system. As the implementation of the community standards evolved over time, the company built a bureaucracy that was engaged in the interpretation of the rules.⁸⁷ Content moderators are employed and trained⁸⁸, and there are multiple layers of review before decisions are made. Currently the company uses a combination of algorithms and human review to implement its rules.⁸⁹ Layered over this, is an appeals mechanism for users who disagree with the company's decision. This was introduced after an outcry about the opacity and finality of decision-making.⁹⁰ The Board is arguably the top-most layer of decision-making. Facebook has invested an irrevocable grant in an independent trust⁹¹ and has recruited experts with reputations to think of⁹² to sit on the Oversight Board. It hears a fraction of the total number of appeals but it is Facebook's experiment with introducing independent experts to adjudicate how it interprets and implements its own rules.

When an organization develops its own system of rules which it enforces against its members or a larger community, it is self-regulating.⁹³

⁸⁶ See Part II.D. of this Essay.

⁸⁷ See Klonick, *New Governors*, *supra* note 3..

⁸⁸ SARAH T. ROBERTS, BEHIND THE SCREEN: CONTENT MODERATION IN THE SHADOWS OF SOCIAL MEDIA (2019)

⁸⁹ See *id.*

⁹⁰ See GILLESPIE, *supra* note 3, 209-213; *UN Special Rapporteur report*, *supra* note 19.

⁹¹ See Kate Klonick, *The Facebook Oversight Board: Creating an Independent Institution to Adjudicate Online Free Expression*, 129 YALE L.J. 2418, 2466-2469 (2020).

⁹² See Klonick, *NEW YORKER*, *supra* note 27.

⁹³ ROBERT BALDWIN AND MARTIN CAVE, UNDERSTANDING REGULATION: THEORY, STRATEGY AND PRACTICE 39 (1999). See also Jonathan Zittrain & John Palfrey, *Reluctant Gatekeepers: Corporate Ethics on a Filtered Internet*,

Government or public regulation tends to involve public or private law sanctions for non-compliance.⁹⁴ Such sanctions would not apply to Facebook if it chose to ignore the Board's decisions. While it may be possible that the calls for regulation precipitated the creation of the Board, as they have for other self-regulatory systems, there is no government oversight of any kind here. Self-regulation is therefore the lens through which the Facebook Oversight Board must be viewed.⁹⁵

There are advantages to using a self-regulatory model. Facebook's content regulation system, including the Oversight Board, readily displays several of the characteristics that make self-regulation appealing. These are responsiveness, flexibility, greater compliance and informed and targeted intervention.⁹⁶ Facebook makes its own rules, and like many private companies, probably complies willingly with its own standards.⁹⁷ The company has access to the information necessary for the framing of the rules, and it knows better than anyone else what it is technically capable of implementing. Facebook can also be responsive and speedily adjust the rules as necessary when new problems emerge.

The scope of the Board's decisions are limited to interpreting Facebook's values, community standards and other related content policies, and taking action in relation to these policies.⁹⁸ This may include for example, instructing Facebook to allow or remove content or share information with the Board.⁹⁹ The documents setting up the Board suggest that the Board has no control over the community standards and content policies apart from their interpretation, apart from offering 'policy guidance' to Facebook about cases before it, or at Facebook's request.¹⁰⁰ In the Trump Ban case, Facebook has requested the Oversight Board for guidance on the suspension of accounts of political leaders. The Oversight Board may well choose to go further, commenting on the removal of posts by political leaders for example.

Facebook's content- governance system for content raises concerns of

in ACCESS DENIED: THE PRACTICE AND POLICY OF GLOBAL INTERNET FILTERING 103 (Ronald Deibert et al. eds. 2008)

⁹⁴ MONROE E. PRICE AND STEFAAN VELHURST, SELF-REGULATION AND THE INTERNET (2005), 4.

⁹⁵ See also Gorwa, *supra* note 3; Arun., *supra* note 3; Kaye, *The Republic of Facebook*, *supra* note 3.

⁹⁶ See Julia Black, Decentring Regulation: Understanding the Role of Regulation and Self-Regulation in a 'Post-Regulatory' World, 54 Current Legal Problems 2001, at 115; BALDWIN & CAVE, *supra* note 93, 129-133.

⁹⁷ See Part IIA of this paper.

⁹⁸ Oversight Board Charter, Article 1, Section 4.

⁹⁹ Id. Note that the byelaws don't allow removal at present but will in the future

¹⁰⁰ Id.

mandate, accountability and fairness¹⁰¹. The independence of the Board as necessary to its legitimacy was highlighted by BSR, which conducted a human rights review of the Oversight Board commissioned by Facebook.¹⁰² The Board will need to be seen as independent, fair and willing to go against Facebook's interests where necessary, if it is to confer increased legitimacy on the content governance system in the eyes of the public.¹⁰³ Since the Board is only able to weigh in on one of the many ways in which Facebook engages with its publics, it is unable to intervene in many controversies involving Facebook.¹⁰⁴ The highly visible Trump Ban case offers a unique opportunity for the Board to increase its legitimacy in public perception.

It is worth noting that although Facebook has committed to carrying out the Board's decisions about specific cases, it has not committed to following policy guidance except to the extent of considering it carefully and transparently communicating its decision.¹⁰⁵ We therefore have to think both of the policy guidance that the Oversight Board will offer on the question of suspension of political leaders' accounts, and whether the company will accept that guidance and follow it. I argue below that if the company wishes to preserve the legitimacy of the Oversight Board, it will need to follow its policy guidance about political leaders as far as possible.

B. Legitimizing Platform Law

The Oversight Board is an expensive and time-consuming endeavor that will affect the reputations of the experts on the Board itself as well as staffing the expert secretariat that supports the Board.¹⁰⁶ Facebook has invested resources in it, so that the elaborate system used to enforce the community standards gains more legitimacy.¹⁰⁷ This legitimacy might serve the function of appeasing its publics on one hand, and warding off state regulation on the

¹⁰¹ See also Arun, *supra* note 3; Kaye, *Republic of Facebook*, *supra* note 3; KAYE, SPEECH POLICE, *supra* note 49, 112.

¹⁰² BSR (2019), HUMAN RIGHTS REVIEW: FACEBOOK OVERSIGHT BOARD, 51, 52. It bears noting in the interests of full disclosure, I was among the external peer reviewers invited by BSR to give feedback on this report before it was published. The BSR review discussed legitimacy in the context of the UN Guiding Principles on Business and Human Rights.

¹⁰³ This is very much among the goals of setting up the Board. See Klonick, NEW YORKER, *supra* note 27.

¹⁰⁴ Several problems such as the company's data collection and sharing practices, and algorithmic manipulation, are outside the Oversight Board's purview. Even the part of content moderation that consists of the Facebook's interpretation and application of local laws do not fall within the Board's jurisdiction.

¹⁰⁵ Oversight Board Charter, *supra* note 1, Article 4.

¹⁰⁶ See Klonick, NEW YORKER, *supra* note 27.

¹⁰⁷ This is very much among the goals of setting up the Board. See Klonick, NEW YORKER, *supra* note 27.

other.

There is no question of the Oversight Board having legal legitimacy since it is not established by law, or moral legitimacy since it neither has the unanimous consent of the governed nor is a perfectly just regime¹⁰⁸. It is clearly sociological legitimacy¹⁰⁹ that is among the goals of creating the Oversight Board.¹¹⁰ Therefore the yardstick by which we need to assess the Oversight Board is whether the public regards it as “justified, appropriate, or otherwise deserving of support for reasons beyond fear of sanctions or mere hope for personal reward.”¹¹¹ This is going to be challenging for the Board since only a fraction of Facebook’s engagement with its publics comes within the Board’s purview. The Board cannot, by design, offer inputs on Facebook’s data collection, data sharing, use of algorithms to target and rank information, or even its choices in interpreting local laws.¹¹²

In its quest for sociological legitimacy, Facebook’s strategies towards being perceived as fair include efforts at procedural justice through the Board and its content moderation systems.¹¹³ It is important that the Oversight Board and the content moderation system more broadly are perceived as a just system offering a fair procedure.¹¹⁴ The fairness of the outcome - distributive justice - can play a role in the evaluation of whether there is procedural fairness.¹¹⁵ People’s perception of a system is affected by both the quality of decisions are made, as well as the quality of how people are treated. The Trump ban brings these issues center-stage.

If sociological legitimacy focuses on how the public sees the system, this begs the question of how Facebook assesses its progress or gain in legitimacy. This is also tied to the question what constitutes the ‘public’ in this context. The company’s responsiveness to its users and its willingness to change its policies is not based on public surveys or consultations accessible to all the

¹⁰⁸ Fallon, *supra* note 5, 1794-1801; For a discussion of how Mark Zuckerberg and the Facebook staff were thinking of the Oversight Board in terms of legitimacy, see Klonick, *NEW YORKER*, *supra* note 27.

¹⁰⁹ *id*

¹¹⁰ See Klonick, *NEW YORKER*, *supra* note 27; Douek, *Move Fast*, *supra* note 4.

¹¹¹ Richard H. Fallon, *supra* note 5 at 1787, 1795.

¹¹² For the span of the platforms’ influence, see RON J. DEIBERT, *RESET* (2020).

¹¹³ THE REPORT OF THE DATA TRANSPARENCY ADVISORY GROUP (2019), Justice Collaboratory, Yale Law School (hereinafter DTAG REPORT); Tyler, *supra* note 7, 284.

¹¹⁴ Tom. R. Tyler and Maura A. Belliveau, Managing Work Force Diversity: Ethical Concerns and Intergroup Relations, in *CODES OF CONDUCT*, 171,179 (David M. Messick and Ann E. Tenbrunsel eds., 1996).

¹¹⁵ Tyler, *Procedural Justice*, *supra* note 7, 341.

people affected by it.¹¹⁶ Its users are not able to use exit as a strategy to voice their dissatisfaction with the company's policies. It is therefore likely that the company uses proxies, reaching out through its staff to consult people and listening to others such as the media, scholars, NGOs and governments even, who make users' view legible to it.

It is clear, as we established earlier, in Part IIC, it is not always useful to think of all Facebook's users as a single public in whose eyes Facebook is aiming to gain legitimacy. We have to think in terms of publics.¹¹⁷ The people affected by Facebook's content policy system are not homogenous. They comprise of a variety of groups such as the media and political parties, and identity-based groups based for example on race, caste, religion or sexual orientation. Groups affected may have competing priorities and interests. Some of them may be better than others at communicating their concerns on an ongoing basis with the company.

It is evident that Facebook's understanding of what its publics want is mediated through strong publics like its staff, the American press - New York Times or the Wall Street Journal for instance - or renowned American scholars. This does not mean that weak publics are entirely lacking in influence, but that their influence tends to be mediated through the strong publics. Therefore, it is really a question of what persuades the strong publics to see Facebook's self-regulatory system as more legitimate. This might include a number of factors including the reaction of weak publics, to the extent that the strong publics are connected and aligned with them.

Arguably the Oversight Board itself forms a powerful public, consisting of people who are in a strong position to influence Facebook but who do not actually have control over it. This makes the Oversight Board a public that can be leveraged by weaker publics in theory, but only to the extent of hearings, inputs and cases that come before it, and public discourse that it cares about. Interestingly, a group of Republican Congressmen have written to the Oversight Board¹¹⁸ which indicates both that they are willing to see its role and legitimate, and that they wish to leverage the influence of the Oversight Board over the company.

It is also worth noting that apart from its limited direct influence on the

¹¹⁶ KAYE, SPEECH POLICE, *supra* note 49, 117-122.

¹¹⁷ See Part IIC of this paper

¹¹⁸ *Letter from Ken Buck et al to the Facebook Oversight Board* available at <https://files.constantcontact.com/60ec52f3801/958b9753-5739-4a6a-8c7f-e3622960304a.pdf> and cited in Abby Lemert, *What Do the Available Public Comments About the Trump Ban Actually Say?*, LAWFARE (Mar 4, 2021), <https://www.lawfareblog.com/what-do-available-public-comments-about-trump-ban-actually-say>.

company, the Oversight Board has a great capacity to affect the company's reputation – this means that its members can step outside their mandate in theory and influence the company in ways that were not anticipated in the Charter. While they may not actually do so, the potential reputational harm of their making this choice means that their engagement with the company does not have to be confined to the terms written up by Facebook in the Charter.

C. The Training Wheels are Off

Without the Trump Ban case, the Oversight Board might have had time to work with cases that affect Facebook's publics but do not affect states or those who control them. It may have gradually gained sociological legitimacy among its publics, which may have included people and groups who influence how several states see Facebook's content moderation system. There are several questions that are best addressed by experts who can explain clearly and credibly why the content should be treated in a particular way.¹¹⁹ The Trump Ban ends the board's period of easing into building a reputation.

It puts the Board in a position in which it is under pressure to publish a decision that ensures that Facebook does not have unlimited power over political leaders, but limits Facebook's permitting incitement of violence on its platform. Republicans have accused the social media of being biased against conservatives.¹²⁰ World leaders have expressed concerns about the de-platforming of heads of state. Facebook's own stakeholder mapping shows that the people it consulted felt that the newsworthiness exception should not apply where there is incitement of 'harm'.¹²¹ Oversight Board Members expressed concerns about Donald Trump even before the decision to suspend his account was taken.¹²² Facebook's own staff expressed concerns.¹²³ This is a defining moment for Facebook's self-regulatory content

¹¹⁹ This does not mean that the Board is free of inherent structural problems (such as the limited opportunity for users to make their case to the board, given that Facebook has access to more data about the content than users ever will). However Facebook's publics may have seen the Board as acceptable even if they did not see it as perfect.

¹²⁰ Tony Romm, *Senate Republicans renew their claims that Facebook, Google and Twitter censor conservatives*, THE WASHINGTON POST (April 10, 2019), <https://www.washingtonpost.com/technology/2019/04/10/facebook-google-twitter-under-fire-senate-republicans-censoring-conservatives-online/>.

¹²¹ *Product Policy Forum on Newsworthiness*, *supra* note 29.

¹²² See Klonick, NEW YORKER, *supra* note 27.

¹²³ Sheera Frenkel et al, *Facebook Employees Stage Virtual Walkout to Protest Trump Posts*, N.Y. TIMES (Jun 1, 2020), <https://www.nytimes.com/2020/06/01/technology/facebook-employee-protest-trump.html>; Fanny Potkin et al, *Facebook staffers walk out saying Trump's posts should*

moderation system.

A decision that fails to reflect concern for the populations affected by political leaders' incitement to violence will be seen as unjust.¹²⁴ The Board does not have the option of characterizing the Trump Ban as an exceptional case arising from the transfer of power. Even if the original suspension of Donald Trump's account was triggered for this reason¹²⁵, the indefinite suspension has to be about more. It is clear from the fraught debates in the months leading to the Trump Ban that the Board cannot side-step the question of political leaders who incite violence without damaging its reputation. It bears noting that the Board has already broadened the question in its invitation of comments to the newsworthiness exception as a whole.

The reasoning offered by the Board and the sources from which it draws its norms will be as crucial in this case as the decision itself. It is unlikely that everyone will agree with the outcome, which is why the Board's reasoning and any process it suggests for how Facebook should make decisions about political leaders in the future, need to be seen as fair, or at least as better than the existing system being used by Facebook. This will influence how the Oversight Board is perceived by states and its publics.

The Oversight Board has already set a precedent of using international law to support its decisions. It might credibly draw, for example, from the Responsibility to Protect principles to argue that it is Facebook's duty to suspend the accounts of political leaders who incite mass violence. This would be consistent with Facebook's Newsworthiness policy. By referencing a set of norms that states have already accepted, the Oversight Board can make it difficult for political leaders to argue with its decision. It might even aim to persuade states that it serves an important function.

The decision about political leaders' accounts puts pressure on the Board early in its tenure. However if it is able to prove itself to its publics by developing a widely accepted rule for how platforms should evaluate and treat heads of state who have a recurring tendency to incite violence, that would be a victory. This case might push states to either accept and recognize

be reined in, REUTERS (June 1, 2020), <https://www.reuters.com/article/us-facebook-trump-employee-criticism/facebook>; See also Kriess et. al, *supra* note 119.

¹²⁴ See for example Elizabeth Dwoskin, Craig Timberg & Tony Romm, *Zuckerberg once wanted to sanction Trump. Then Facebook wrote rules that accommodated him*, THE WASHINGTON POST (June 28, 2020),

<https://www.washingtonpost.com/technology/2020/06/28/facebook-zuckerberg-trump-hate/>; Jackson & Minow, *supra* note 9; Daniel Kreiss & Shannon McGregor, *Facebook's Oversight Board Must Uphold the Ban on Trump*, WIRED IDEAS (March 1, 2021), <https://www.wired.com/story/facebook-oversight-board-trump-ban/>.

¹²⁵ See Rosen & Bickert, *supra* note 25; Clegg, *supra* note 1.

the Board's decision or use their powers of regulation to undermine it.

IV. ONE BOARD TO RULE THEM ALL

In this part of the paper, I discuss the implications of the enhanced interest that states are likely to have in this case, as well as how it might affect Facebook's faces and public perception of the legitimacy of the content-moderation system.

As I argue in Part IIIC of this paper, states and publics may not all agree on what outcome is ideal in this case. However, the Oversight Board will alienate powerful publics if it rejects the idea of de-platforming political leaders altogether or requires a highly exceptional situation to trigger it. The Board cannot ignore the reality that political leaders are highly effective in inciting violence to tragic effect. Depending on its reasoning, the Board may be able to persuade some states to accept a new process for Facebook's de-platforming of political leaders.¹²⁶ However, it is also likely that some states will be opposed to de-platforming, especially when it is their head of state who gets de-platformed.¹²⁷

Many who were critical of companies' decisions were critical specifically of the power wielded by Mark Zuckerberg and Jack Dorsey. Moving from 'Mark decides' to a transparent process, will offer states and politicians less room for negotiation since Facebook can accept policy guidance and allow the Oversight Board to tie its hands. It is in Facebook's interests to have its independent expert Oversight Board weigh in. However, the Oversight Board needs to speak in a way that distinguishes it from Facebook. This situation presents the Oversight Board with the opportunity to signal to both states and publics that it is interested in human rights¹²⁸ and not in the Facebook's access to markets.

If the Board should choose to publish a powerful opinion about political leaders and dangerous speech, Facebook does have the option of ignoring it. However, if the company should choose to do so, it will reduce its sociological legitimacy greatly since it will have demonstrated that it will

¹²⁶ Discussed in detail in III C above.

¹²⁷ See Myanmar's reaction to UN fact-finding mission. See also David Kaye's discussion of how Kenyan law shields politicians instead of addressing online incitement to violence KAYE, *SPEECH POLICE*, *supra* note 49, 110-111.

¹²⁸ Molly K. Land, *Regulating Private Harms Online: Content Regulation Under Human Rights Law*, in *HUMAN RIGHTS IN THE AGE OF PLATFORMS* 285 (Rikke Frank Jørgensen ed., 2019); See also Susan Benesch, *But Facebook's Not a Country: How to Interpret Human Rights Law for Social Media Companies*, Yale J. on Reg.; Michael Karanickolas, *Squaring the Circle Between Freedom of Expression and Platform Law*, 20 Pitt. J. Tech. L. & Pol'y 175.

ignore its own hand-picked independent experts to pander to political leaders in circumstances in which it arguably shouldn't. There is also the risk that Board members may resign in protest if pushed too far.

Although the newsworthiness exception is not supposed to protect incitement to harm, it offers an avenue for government relations staff within the company to successfully advocate for exceptional treatment of politicians to facilitate their own complicated engagement with governments.¹²⁹ The flexibility also means that political leaders can use state power to push to be accommodated. Facebook does after all, have to engage with political leaders about a range of issues such as taxation, competition, data privacy, permission to engage in new sectors like banking, and emerging legislation.

The loss of flexibility to use the newsworthiness exception to appease political leaders may mean Facebook's local government relationship teams in some countries may find their negotiations affected. However the Board can also empower Facebook's other faces – teams with a mandate to protect human rights – with a clear rule limiting inappropriate use of the newsworthiness exception when it endangers populations. The Oversight Board likely often arbitrates between Facebook's faces. It offers the company a valuable service by showing it which face should be empowered in different contexts.

If the Oversight Board comes up with a rule for incitement to violence by political leaders and the company follows the rule, there will be consequences. It is likely that disgruntled political leaders will attack both the company and the Oversight Board in reaction. This may endanger staff based in countries controlled by irate political leaders, and place Facebook at the risk of being blocked in markets where the political leaders have the power to take such a step.¹³⁰ Neither of these reasons is good enough for Facebook to enable incitement to violence at a large scale. It can prepare in advance for irate political leaders, but its reputation will not withstand much more enabling of violence.

No public is insignificant, even from an instrumental point of view, since it can end up affecting the company's relationship with influential states, institutions and groups.¹³¹ As a result, what looks like a good business decision in the short term may be a very bad one in the long term. This is the context that Facebook should take into account while reconsidering its willingness to use a uniform standard for de-platforming heads of state.

¹²⁹ See for example, Purnell & Horwitz, *supra* note 64.

¹³⁰ See MACKINNON, *supra* note 37; Klonick, *New Governors*, *supra* note 3.

¹³¹ See Part IIC of this paper.

CONCLUSION

Facebook has a complex web of relationships with states and with its publics. It also has a complex internal structure, which by design puts its teams at odds with each other. This healthy friction is how government relations teams can be restrained from facilitating politicians' violation of human rights by other teams whose role it is to anticipate and prevent such an outcome. If Facebook has many faces in its engagement with states and its publics, the Oversight Board is one of more powerful faces and is arguably barely tethered to the other faces.

When the Oversight Board decides the Trump Ban case, it will impact its relationship with its publics and the company, and the internal tension between teams about decisions about political leaders' speech. It will also potentially put Facebook in a spot where the company may need to strain its relationship with some states to preserve the legitimacy of its content moderation decisions, and of its expensive Oversight Board.

The Oversight Board can only help with this if it takes the question on with all its complex dimensions and successfully recommends a standard and process for this decision that suspends any speculation that it will continue to be Mark Zuckerberg's potentially subjective decision. A statement on behalf of Donald Trump from political leaders holding public office has been received by the Oversight Board, which goes a long way towards recognizing its legitimacy in the United States. For this legitimacy to carry weight elsewhere, the Oversight Board will need to publish a decision that indicates that a global uniform standard will supersede subjective, potentially rent-seeking, negotiations with states.